

would be useless—controversies and litigations would be infinite in number and duration. Therefore it is, that the exemption of judicial characters from liability to actions in such cases, was established. It was not to please, or benefit, or exalt the individual, that the exemption was given; it is not for his own sake, that the Judge is irresponsible; it is not to give false importance or “spread a blaze of glory round his head.” No! it is because it became necessary to secure the pure and certain administration of the law of the land, for the attainment of justice.—It was for the sake of the community at large—for the good of the great body of the people, on whom this inviolability of the judicial character confers the most invaluable advantages; and accordingly the exemption is co-extensive with its principle, and confined to acts strictly judicial, which it is the policy of the law to protect and preserve undisturbed. This being the policy of the law, and its principle being the benefit and advantage of the community, not the exaltation or aggrandizement of the individual or the class—how can it be strained to protect the illegal imprisonment of the Plaintiff here? How can it be set up to oppose or upset that other great and paramount principle of the law and the constitution, which watches over and guards the personal liberty of the subject;—a principle, of at least equally general importance and regard, well understood and acknowledged, incorporated in the most intimate manner with the constitution; and a principle, which the advocates of judicial privilege will do well to consider how they engage with, or set in competition against the idol of their admiration. For, if unfortunately they should become conflicting principles, and weighed one against the other, it cannot be long doubtful which will kick the beam. If there were even more in this declamation, (for I can call it nothing else which talks of the judicial character being degraded,) we should decide against this plea. If we were reduced to the miserable alternative presented, that either the judicial character must be humbled, or the fences that surround personal liberty prostrated; in the choice of difficulties I would say, let every Judge stand or fall in public estimation by his individual integrity and personal worth; it is of the very essence of the law, that the liberty

of the subject shall be strictly observed, and guarded with the utmost vigilance and care; and that no man's freedom shall be taken from him, without the judgment of his peers, aided by the consideration of the court on the law, as it affects the evidence against him.

This in the estimation of the constitution and of every man who is capable of feeling a spark of the sublime and enthusiastic admiration of liberty, which animated the breasts of those who reared the glorious fabric of the British constitution, is paramount; like *Aaron's rod*, it swallows up all others.—It is the first, and grandest, and most valuable principle of public policy, that that liberty, which the law ensures to every subject, shall not be infringed;—it is the right of every subject in this land;—by the enjoyment of the *British* constitution, he becomes entitled to it, at the moment of his birth; and it is not to be invaded or wrested from him with impunity, by a warrant illegally issued by any person, or from any quarter; nor explained away, by a new fangled maxim, founded upon a mistaken notion of policy, and strained beyond its meaning, the absurdity of which cannot appear more plainly, than when it is contrasted or set in competition with the other.

But it has been said, that the Plaintiff has a remedy in parliament; and that personal security is thereby sufficiently protected. Let this remedy be examined, and I fear, that if Mr. *Taaffe* be allowed no other, it will be found that he has no remedy at all. Parliament can afford no remedy or compensation for individual and private injuries;—they cannot be expected to attend to;—they could not if they would, try every private case; and if they could try, they could award no compensation. Parliament may interfere, for the purpose of bringing great public criminals to justice, such as I am happy to say, it would be necessary to go to remote times to find disgracing the Bench; but I fear this remedy would be found of little avail in the case of a private individual; nay, I have the authority of *Gregory*, *Eyre*, and *Dollen*, to say, that to institute such a proceeding before parliament,—to withdraw the investigation from the proper

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tribunal "trenches upon all men's rights and liberties, tending manifestly to destroy all trials by Jury;" they add, "that such a complaint is utterly unfit for the examination of the houses of parliament, for they cannot apply the proper and only remedy which the law hath given the party in this case, which is, by awarding damages to the party injured, (if any injury be done) for these are only to be assessed by a Jury;" and they forcibly conclude, "that in as much as the petition is a complaint, in the nature of an original cause, for a supposed breach of an act of parliament, which breach, if any be, is only examinable and triable by the course of the common law, and cannot be so in any other manner, and is in the example of it, dangerous to the rights and liberties of all men, and tends to the subversion of all trials by Juries, they conceive themselves bound in duty, with regard to their offices; and in conscience to the oaths they have taken, to crave the benefit of defending themselves; touching the matter complained of in the petition, by the due and known course of the common law, and to rely upon the aforesaid statutes and the common right they have of free-born people of *England* in bar of the Petitioner's any further proceeding upon the said Petition; and pray to be dismissed from the same."

Surely, this argument against the proposed remedy in parliament is unanswerable, on public grounds alone; but waiving them for a moment, I ask of what use could it be to Mr. *Taaffe* to petition parliament? What possible advantage could he derive from it? Suppose all the previous difficulties (and numerous they are) surmounted.—Suppose his petition presented and entertained; and a vote of censure to pass in the House of Commons against the learned and respectable Defendant; yet this vote must be confirmed by the House of Lords, before he could hope for redress; and admitting, that it did pass the Lords, and succeed to the fullest extent, the only consequence would be the removal of the learned Defendant from his present situation. What compensation would that afford to the Plaintiff for the injury he has sustained? Certainly none. The Complainant would get nothing by such a procedure;